



South Portland, Maine 04106

Criminal Justice Department

Title: Case Preparation

Catalog Number: CJUS 245

Credit Hours: 3

Total Contact Hours: 40

Lecture (or Lab): Lecture

Instructor: William J. Herbert

Office Hours – Location: Open door policy Howe Hall Room 102

Contact Information: WHerbert@smccme.edu office 741-5855

How should students contact you? In person, e-mail, office telephone

Course Syllabus

Course Description

This course is designed to teach students proper methods in which to prepare a case for possible court presentation. Included in the course will be appropriate information gathering techniques; report writing; and pre –court preparation. Proper courtroom procedures, witness styles and behavior will be discussed; Legal standards related to acquiring information by police officers will be presented.

Course Objectives

After completing this course, the student will be able to:

1. Recognize and gather essential information for possible prosecution
2. Understand how to write a police report in such a way as to convey pertinent information in a concise manner
3. Appreciate the necessity for thorough pre-trial preparation
4. Learn the techniques necessary to be a competent witness

Topical Outline of Instruction

1. Introduction and basic police report writing
2. Use of legal terms as they apply to case preparation
3. The importance of factual statements and objectivity

4. Criminal investigation case flow chart
5. Apply the standards of mere suspicion, reasonable suspicion and probable cause during the investigation
6. Understanding the culpable mental states as defined in title 17a of the Maine Criminal Code
7. Determine and apply the Elements of crimes when charging a criminal defendant
8. Identify and apply the 12 universal solvability factors when conducting a criminal investigation
9. Understand the provisions and requirements of the Fourth Amendment to the U.S. Constitution and how it applies to police officers
10. Properly conduct a domestic violence investigation (Use of video "The Call) class room exercise
11. Properly conduct an OUI investigation
12. How and when to conduct an interview and interrogation of a suspect
13. The legal requirements of writing a search warrant application to conduct a search and seizure action as a police officer
14. Learn how the affirmative defense of entrapment applies to investigations
15. Effective pre-court preparation
16. Testifying in court

Course Requirements

This course will be conducted using lecture, discussions, out of class written assignments and student exercises.

Student Evaluation and Grading

Students will be graded in the following manner: Quizzes, written assignments, student exercises = 33%\

Mid-term exam= 33%

Final exam= 33%

Attendance and class polices will also be included in the grade calculation

Text, Tools and / or Supplies

The required text book is the latest edition of Barron's Dictionary of Legal Terms by Steven H. Gifis

Numerous handouts will be provided during the semester. Students will be responsible for the organization of these documents and to have them available in class

Attendance Policy

See the separate document that details the class attendance policy along with other policies and procedures

End-of-Course Evaluation

Students complete evaluations for each course attended at SMCC. Evaluations are submitted online and can be accessed through the student portal. Students can access the course evaluations beginning one week before the end of classes. The deadline for submission of evaluations occurs Monday at 5 PM following the last day of the class. You will receive an email to your student email account when course evaluations are available.

ADA Syllabus Statement

Southern Maine Community College is an equal opportunity/affirmative action institution and employer. For more information, please call 207-741-5798. If you have a disabling condition and wish to request accommodations in order to have reasonable access to the programs and services offered by SMCC, you must register with the Disability Services Coordinator, Sandra Lynham, who can be reached at 741-5923. Further information about services for students with disabilities and the accommodation process is available upon request at this number. Course policies about online testing are modified to suit each individual's accommodations.

SMCC Pay-for-Print Policy**Per Page Costs**

Each semester students receive a \$20 printing credit. The balance resets at the end of the semester and any remaining credits are removed. The cost varies depending upon page size and whether printing is done in black and white or color.

- a. There is a \$0.10 per page fee for standard 8.5" by 11" black and white documents.
- b. The reverse sides of duplex (double-sided) documents are free.
- c. There is a \$.50 per page fee for standard 8.5" by 11" color documents.
- d. There is a \$.20 per page fee for 8.5" by 14" (legal) or 11" by 17" (tabloid) black and white documents.
- e. There is a \$1.00 per page fee for 8.5" by 14" (legal) or 11" by 17" (tabloid) color documents.

Duplex charges (printing on both sides of a page) work in the following fashion: One page is \$0.10, two pages are \$0.10, three pages are \$0.20, and four pages are \$0.20, etc. The flipsides are free, but another sheet of paper is \$0.10. Please be aware that a document with any color at all (when printed to a color

printer) will by default be printed in color. You are responsible for setting the print job to print black and white if you do not need color. For directions, please go to the IT Help tab in My SMCC.

How does it work?

The College's pay-for-print system monitors printing on all printers (including those in general access labs, library printers, the Academic Achievement Center, Noisy Lounge and technology labs). Students can check the number of pages they have printed by using the Printing Balance tool available on SMCC computers (located in the lower right corner of the screen, near the clock). Departments with work study students who need to print documents for the department should contact the Help Desk at 741-5696 to have a special account set up.

Refunds

Print jobs are eligible for a refund in the event of mechanical or electronic error on the part of the printer, print server, or software used to submit the job. Jobs are not eligible for a refund in cases where the job was not set up correctly, was submitted multiple times, or the student is not satisfied with the result. To request a refund, please bring the offending print to the IT Department in the basement of the Ross Technology Center. Refunds will be granted in the form of a credit to the student's account.

Why is SMCC charging for printing?

The pay-for-print system is an effort to control escalating printing costs. Charging for printing helps offset the increasing cost of supplies and encourages students to conserve resources. To find ways to reduce your printing charges, please go to the IT Help tab on My SMCC. If you have questions about the pay-for-printing policy or your printing charges, please contact the Help Desk at 741-5696 or send an email to helpdesk@smccme.edu.

Be sure to log OUT of the system when you've finished your printing, to prevent unauthorized access to your account.

Add-Drop Policy

Students who drop a course during the one-week "add/drop" period in the fall and spring semesters and the first three days of summer sessions receive a 100% refund of the tuition and associated fees for that course. Please note any course that meets for less than the traditional semester length, i.e., 15 weeks, has a pro-rated add/drop period. There is no refund for non-attendance.

Withdrawal Policy

A student may withdraw from a course only during the semester in which s/he is registered for that course. The withdrawal period is the second through twelfth week of the fall and spring semesters and the second through ninth week of twelve-week summer courses. This period is pro-rated for shorter-length courses. To withdraw from a course, a student must complete and submit the appropriate course

withdrawal form, available at the Enrollment Service Center (no phone calls, please). The designation “W” will appear on the transcript after a student has officially withdrawn. A course withdrawal is an uncompleted course and may adversely affect financial aid eligibility. Failure to attend or ceasing to attend class does not constitute withdrawal from the course. There is no refund associated with a withdrawal.

Plagiarism Statement

Adherence to ethical academic standards is obligatory. Cheating is a serious offense, whether it consists of taking credit for work done by another person or doing work for which another person will receive credit. Taking and using the ideas or writings of another person without clearly and fully crediting the source is plagiarism and violates the academic code as well as the Student Code of Conduct. If it is suspected that a student in any course in which s/he is enrolled has knowingly committed such a violation, the faculty member should refer the matter to the College’s Disciplinary Officer and appropriate action will be taken under the Student Code of Conduct. Sanctions may include suspension from the course and a failing grade in the course. Students have the right to appeal these actions to the Disciplinary Committee under the terms outlined in the Student Code of Conduct.